

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

Adopted by the Judicial Council on August 15, 2008,
effective on August 15, 2008

**Rule 10.461. Minimum education requirements for Supreme Court and
Court of Appeal Justices**

(a)–(d) ***

(e) Records and summaries of participation for justices

Each justice is responsible for:

- (1) Tracking his or her own participation in education and keeping a record of participation, ~~on a form provided by the Judicial Council~~, for three years after each course or activity that is applied toward the requirements, on a form provided by the Chief Justice for the Supreme Court or by the administrative presiding justice for each appellate district of the Court of Appeal. The form must include the information regarding a justice's participation in education that is needed by the Chief Justice or the administrative presiding justice to complete the aggregate form required by rule 10.452(d)(6);
- (2) At the end of each year, giving the Chief Justice or the administrative presiding justice a copy of his or her record of participation in education for that year, ~~on the a form provided by the Chief Justice or the administrative presiding justice~~ Judicial Council; and
- (3) At the end of each three-year period, giving the Chief Justice or the administrative presiding justice a copy of his or her record of participation in education for that year and a cumulative history of participation for that three-year period, ~~on the a form provided by the Chief Justice or the administrative presiding justice~~ Judicial Council.

(Subd (e) amended effective August 15, 2008; adopted effective January 1, 2008.)

Rule 10.461 amended effective August 15, 2008; adopted effective January 1, 2007; previously amended effective January 1, 2008.

Advisory Committee Comment

The requirements formerly contained in subdivision (e)(2) of rule 970, which has been repealed, are carried forward without change in rule 10.461(b).

The Administrative Office of the Courts (AOC) has developed both a manual format and an automated format of the individual justice's recording and reporting form referenced in rule 10.461(e) that gathers all the information needed by the Chief Justice or the administrative

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presiding justice to complete the aggregate report to the Judicial Council required under rule 10.452(d)(6). The Chief Justice or the administrative presiding justice may determine which form should be used in his or her court and may provide the manual or automated format of the AOC-developed form (available from the AOC's Education Division/Center for Judicial Education and Research) or may provide another appropriate form that has been developed by his or her court or by another court that gathers all the information needed by the Chief Justice or the administrative presiding justice to complete the aggregate report to the Judicial Council.

Rule 10.462. Minimum education requirements and expectations for trial court judges and subordinate judicial officers

(a)–(e) ***

(f) Records and cumulative histories of participation for judges

Each judge is responsible for:

- (1) Tracking his or her own participation in education and keeping a record of participation, ~~on a form provided by the Judicial Council~~, for three years after each course or activity that is applied toward the requirements and expectations, on a form provided by the presiding judge. The form must include the information regarding a judge's participation in education that is needed by the presiding judge to complete the aggregate form required by rule 10.452(e)(7);
- (2) At the end of each year, giving the presiding judge a copy of his or her record of participation in education for that year, ~~on the a form provided by the presiding judgeJudicial Council~~; and
- (3) At the end of each three-year period, giving the presiding judge a copy of his or her record of participation in education for that year and a cumulative history of participation for that three-year period, ~~on the a form provided by the presiding judgeJudicial Council~~.

(Subd (f) amended effective August 15, 2008; previously amended effective January 1, 2008.)

(g) ***

Rule 10.462 amended effective August 15, 2008; adopted effective January 1, 2007; previously amended effective January 1, 2008, and July 1, 2008.

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Advisory Committee Comment

The minimum judicial education requirements in rule 10.462 do not apply to retired judges seeking to sit on regular court assignment in the Assigned Judges Program. Retired judges who seek to serve in the Assigned Judges Program must comply with the Chief Justice's Standards and Guidelines for Judges Who Serve on Assignment, which includes education requirements.

The Administrative Office of the Courts (AOC) has developed both a manual format and an automated format of the individual judge's recording and reporting form referenced in rule 10.462(f) that gathers all the information needed by the presiding judge to complete the aggregate report to the Judicial Council required under rule 10.452(e)(7). The presiding judge may determine which form should be used in his or her court and may provide the manual or automated format of the AOC-developed form (available from the AOC's Education Division/Center for Judicial Education and Research) or may provide another appropriate form that has been developed by his or her court or by another court that gathers all the information needed by the presiding judge to complete the aggregate report to the Judicial Council.